

Serial No. 03
Regular List

HIGH COURT OF MEGHALAYA
AT SHILLONG

MC (PIL) No. 6 of 2019

In PIL [Sou Motu] No. 14 of 2019

Date of order: 04.03.2020

In Re Subordinate Courts in the State of Meghalaya Vs. State of Meghalaya

Coram:

Hon'ble Mr. Justice Mohammad Rafiq, Chief Justice

Hon'ble Mr. Justice W. Diengdoh, Judge

Appearance:

For the Petitioner/Appellant (s) :

For the Respondent(s) : Mr. A. Kumar, AG with
Mr. S. Sengupta, Addl. Sr.GA
Mr. A. Kharwanlang, GA

This Misc. Application was registered on the intimation report received from the District & Sessions Judge, Ri Bhoi District, Nongpoh dated 21.08.2019 complaining that no police constable was attached to the court for past 2 years. One woman police constable who was detailed for UTP duties, was not appearing but later on she appeared before the court. The court informed the prosecuting Sub-Inspector that due to many female accused persons (including female UTPs) and female witnesses attending the court on a daily basis, it is very necessary that the woman police constable should be regularly present on duty since she was attached with the court. Despite this, the Inspector (R.I.), Nongpoh on 19.08.2019 unilaterally closed the command of the concerned woman police constable and withdrew her from the court. Learned judge has therefore, stated that in view of these circumstances, there is a very serious apprehension of any untoward incidence taking place in the court of the unruly behaviour or conduct on the part of the female accused persons.

Learned Advocate General submitted that 3 woman constables have now been attached to the court of the District and Sessions Judge, Nongpoh and the court of Special Judge, POCSO, Nongpoh, 10 more lady constables from Head Quarters have now been deputed to District Police Head Quarter. There shall be no problem in the future.

In view of the assurance given by the learned Advocate General, MC [PIL] No. 6 of 2019 is disposed of.

(W. Diengdoh)
Judge

(Mohammad Rafiq)
Chief Justice

Meghalaya

04.03.2020

"Sylvana PS"

